

JULY 26, 2023

1:30 P.M.

18CV42965	SWIFT FINANCIAL v COUNTRY HAVEN INCORPORATED, et al	This matter is set for an OSC: Re Dismissal pursuant to CCP 583.310. Counsel has not kept Court advised of their address. OSC is rescheduled for 9/6/2023 at 1:30 pm in Dept. 4. Petitioner's counsel - Murchison & Cumming, LLP has closed San Francisco office. Court clerk to provide notice to new address for Murchison & Cumming, LLP, i.e., 2175 N. California Blvd., Suite 900 Walnut Creek, CA 94596.
19CF12901	TONNA, et al v GONZALEZ, et al	Upon review of file, this matter is set for an OSC: Re Dismissal pursuant to CCP § 583.210 for today's date in Dept. 4. Court clerk provided notice to Plaintiff. Complaint was filed July 1, 2019. Plaintiff has failed to serve the Summons and Complaint within the mandatory three (3) years period from date of filing set forth in California Code of Civil Procedure § 583.210, case is DISMISSED .
23CF14110	LOPEZ v ROSE	Trial is currently set in this matter, and related cases (22DV46201 and 22CH46222) on October 5, 2023, at 1:30 PM in Dept. 2. The next CMC is set 10/25/2023 at 1:30 pm in Dept. 4, which will be vacated if matter proceeds to hearing as set.
23CV46644	ANDREWS v. ANDERSON, et al	A hearing on Defendants Demurrer to First Amended Complaint is set for July 28, 2023. The next CMC is set 11/29/2023 at 1:30 pm in Dept. 4.
23CV46648	NINOS v. NINOS	Upon review of file, Complaint has been answered, no Case Management Conference Statement was filed by Defendant, but Plaintiff appears ready to conduct necessary discovery and is willing to mediate dispute. Also appears that this matter has a related action (Ninos v. Ninos #20FL44723) which the subject matter in this matter was excluded. The next CMC is set 11/29/2023 at 1:30 pm in Dept. 4.
23CV46649	MURRAY v. BALDWIN	Upon review of file, Complaint has not been served, but Plaintiff's counsel states that he is "actively working with Defendant's insurance company to settle the case." Court will set another CMC for 11/29/2023 at 1:30 pm in Dept. 4, where Plaintiff will advise of status at conference or is revised CMC Statement.
23CV46667	BELL, et al v. ARNOLD GIANT BURGER	Upon review of file, Complaint and Counter Claim have been filed and Answers filed. Court notes a recent withdrawal/substitution of counsel." Court will set another CMC for 11/29/2023 at 1:30 pm in Dept. 4. Parties to provide updated Case Management Statements.

2:00 P.M.

19FL43957	DIEGO v. BACK	Petitioner has filed a Proof of Service; however, Respondent has not filed a Response. Petitioner is referred to the Self-Help Center to file a default or a dismissal. The next CMC is 011/29/2023 at 2:00 p.m. in Dept. 4.
19FL44454	DECOSTE v DECOSTE	Petitioner has filed a Proof of Service; however, Respondent has not filed a Response. Petitioner is referred to the Self-Help Center to file a default or a dismissal. The next CMC is 011/29/2023 at 2:00 p.m. in Dept. 4.
20FL44513	COOPER v BEYERSDORF	Petitioner has filed a Proof of Service; however, Respondent has not filed a Response. Petitioner is referred to the Self-Help Center to file a default or a dismissal. The next CMC is 011/29/2023 at 2:00 p.m. in Dept. 4.
21FL45715	LEONARD v. MELLOW-HALL	A proof of Service of the petition is filed. However the Proof of Service for Summons and Complaint omitted the location of where service was perfected. No response has been filed, and a Request for Default has been filed. Petitioner should contact Self Help Center to amend "Proof of Service of Summons" to include entry at "part 2." The next CMC is 09/20/2023 at 2:00 p.m. in Dept. 4.
22FL46200	STOFFEL v STOFFEL	Respondent is requesting Court set a Trial Date, but a Mandatory Settlement Conference will be set before trial date. Earliest date available is October 4 at 8:30 am in Dept. 4, but Court wants parties to confirm their availability for such date, and be able to provide updated financial forms if necessary. The next CMC is 011/29/2023 at 2:00 p.m. in Dept. 4.
22FL46203	RADCHENKO v RADCHENKO	A Default was entered in this matter, the Default Judgment needs to be perfected by Declaration or Prove-up hearing. The next CMC is 11/1/2023 at 2:00 p.m. in Dept. 4.
22FL46214	LOWELL v LOWELL	Respondent's Declarations of Disclosure has been received: Petitioner's have not. Both Parties Disclosures are necessary for resolution of issues. The next CMC is 11/1/2023 at 2:00 p.m. in Dept. 4.
22FL46265	WOOD v KOCH	Petitioner and Respondent are to file a Preliminary Declaration of Disclosure prior to the next CMC set for 11/1/2023 at 2:00 p.m. in Dept. 4.
22FL46443	FORMATI v FORMATI	Petitioner has filed a Proof of Service; however, Respondent has not filed a Response. Petitioner is referred to the Self-Help Center to file a default or a dismissal. Alternately, Respondent is referred to the Self-Help Center to file a Response. The next CMC is 11/1/2023 at 2:00 p.m. in Dept. 4.